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AS AMENDED

By: Murdock of the Senate

Dobrinski of the House

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

Section 3-8-101. This act shall be known and may be cited as the "Terry Peach ~~North Canadian Watershed~~ Water Restoration Act".

Section 3-8-102. A. As used in the Terry Peach ~~North Canadian~~
Watershed Water Restoration Act:

1. "Commission" means the Oklahoma Conservation Commission;

1 2. "Harmful woody species" means a tree or shrub species that
2 is rapidly encroaching into adjoining lands and is likely to cause
3 harm to the environment or economy. Harmful woody species include,
4 but are not limited to, *Juniperus virginiana* (Eastern Redcedar),
5 *Juniperus scopulorum* (Rocky Mountain juniper), *Juniperus monosperma*
6 (oneseed juniper) ~~and~~, *Tamarix ramosissima* (salt cedar), *Juniperus*
7 *pinchotii* (redberry juniper), *Juniper ashei* (ashe juniper), and
8 *Prosopis glandulosa* (honey mesquite); and

9 3. ~~"North Canadian Watershed"~~ means ~~the~~ an area of land in
10 Oklahoma that drains or sheds water into ~~the North Canadian River a~~
11 waterway or water basin.

12 B. ~~There~~ Subject to the availability of funds, there is hereby
13 created a statewide pilot program to remove or eradicate harmful
14 woody species in ~~the North Canadian Watershed~~ watersheds to be
15 administered ~~by~~ through the Oklahoma Conservation Commission. To
16 accomplish the goals listed in this section, the Commission is
17 authorized to use the funds available in the ~~North Canadian~~
18 ~~Watershed~~ Water Restoration Revolving Fund established in Section ~~3~~
19 ~~of this act~~ 3-8-103 of this title. The purpose of the program is to
20 manage and eradicate, where possible, harmful woody species that
21 damage grazing lands, create significant wildfire risk, reduce
22 wildlife habitat and reduce water flow into ~~the North Canadian River~~
23 waterways and water basins.

24 C. In administering the pilot program, the Commission shall:

1 1. Cooperate with landowners, state agencies, and other
2 political subdivisions for removal of harmful woody species;
3 2. Measure the density of harmful woody species and estimate
4 water used by those species;
5 3. Create a study using a parallel watershed with no control of
6 harmful woody species;
7 4. Utilize available funds to cost-share with landowners,
8 recognized governmental entities, or not-for-profit organizations
9 for expenses incurred in the eradication of harmful woody species by
10 prescribed burn, biological controls, mechanical removal, or
11 herbicide applications;
12 5. Develop grant programs with conservation districts, rural
13 fire departments, and prescribe burn associations for resources
14 needed for prescribed burns, mechanical removal, biological control,
15 or herbicide applications on harmful woody species;
16 6. Bring attention to the problems posed by harmful woody
17 species to create awareness, demonstrate value to all stakeholders,
18 and encourage landowners to participate in the program; and
19 7. Have at least ~~two~~ three active project areas in the program,
20 consisting either of one above the Canton Lake dam and one below,
21 above Lake Overholser, and the North Fork Red River into Lugert-
22 Altus Reservoir.
23 D. The Commission is authorized to promulgate any rules and
24 procedures to effectuate the provisions of this section.

SECTION 3. AMENDATORY Section 3, Chapter 372, O.S.L.

2023 (27A O.S. Supp. 2024, Section 3-8-103), is amended to read as follows:

Section 3-8-103. There is hereby created in the State Treasury a revolving fund for the Oklahoma Conservation Commission to be designated the "~~North Canadian Watershed~~ Water Restoration Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Conservation Commission from appropriations, federal grants or funds, municipal contributions, private contributions, and any other sources, including interest earned from the income in the fund, that are designated for deposit to such fund or designated for duties associated with harmful woody species removal from the ~~North Canadian Watershed~~ watersheds throughout the state. All monies accruing to the credit of ~~said~~ the fund are hereby appropriated and may be budgeted and expended by the Conservation Commission to perform the duties imposed on the Commission by law. Expenditures from ~~said~~ the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 4. This act shall become effective November 1, 2025.

COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
March 5, 2025 - DO PASS AS AMENDED